

WESTERN LAW

HUNGER BEYOND APPETITE: HOLLOW RIGHTS, MIGRANT
PRECARITY, AND AGRICULTURAL LABOR IN ONTARIO

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Introduction

Agriculture in Canada is centered in the prairie provinces of Alberta, Manitoba, and Saskatchewan, but Ontario is also responsible for the production of billions of dollars in dairy, fruit, and vegetables.¹ Those who work in agriculture are purposefully excluded from traditional labour protections such as those available through the *Labour Relations Act*. However, this is not a coincidence or a lapse in legislative judgement. Agricultural workers are instead ‘protected’ by the *Agricultural Employee Protection Act* (AEPA) a piece of legislation which holistically fails to fulfill its ascribed purpose.

Inversely, the Canadian judiciary has continued to gradually develop and evolve s.2(d) *Charter Rights*, which guarantee the freedom to associate. Section .2(d) has expanded to include the right to associate, the right to bargain and be received in good faith, and the right to strike. These collective rights are guaranteed to everyone in Canada, but these rights are also frequently out of reach for the workers who cultivate and harvest the produce that makes it onto Canadian tables. I contend that there is a disjunction between s.2(d) jurisprudence and the way agricultural workers are treated in Ontario under the AEPA. The AEPA is a legislative failure as it willfully ignores the material circumstances of many migrant workers in agriculture that face hardship from the moment that they step foot onto Canadian soil.

In Ontario, unionized workers are protected under the *Labor Relations Act*. The Act’s purpose is to “facilitate collective bargaining between employers and trade unions that are the freely designated representatives of the employees”.² Excluded from the *Labour Relations Act* are several professions such as provincial judges under s.3(i), domestic labourers employed in

¹ Government of Canada, *Overview of Canada’s Agriculture and agri-food sector*, (July 2023), online: <https://agriculture.canada.ca/en/sector/overview>.

² *Labour Relations Act*, SO 1995, c 1 [LRA].

private homes under s.3(a), and employees who fall under the *Agricultural Employees Protection Act* (2002). According to the *AEPA*, agriculture is defined under s.2 as “farming in all its branches” encompassing a range of products from livestock to fruit and vegetables.³

This essay will address the legislative path which section 2(d) *Charter* rights have taken, how this progression has left agricultural workers in Ontario behind, and how the law participates in constructing and upholding the precarity of migrant workers.

i) The History of s.2(d) of the *Charter* – The Freedom to Associate

There is extensive scholarship on the tumultuous history of Section 2(d) of the *Charter* and labor law. The focus of this essay is the trajectory which labor law and s.2(d) of the *Charter* has taken through case law. Key decisions include *Dunmore v Ontario (AG)*⁴, *Ontario (AG) v Fraser*⁵, and *Saskatchewan Federation of Labor v. Saskatchewan*.⁶ The goal of laying this groundwork is to subsequently connect *Charter rights* protected under s. 2(d) with the *AEPA*, Seasonal and Temporary Foreign Worker Programs, and underline the unique precarity of migrant workers in agriculture.

ii) Canada’s Reliance on Seasonal and Temporary Foreign Workers in Agriculture

Today, Canada –particularly Ontario– relies heavily on migrant workers in the agricultural sector. Both the Seasonal Agricultural Worker Program (“SAWP”) and Temporary Foreign Worker (“TFW”) program contribute to employing foreign workers. SAWP began as a bilateral partnership forged between Jamaica and Canada and was an opportunity for Jamaican

³ *Agricultural Employee Protection Act*, SO 2002, c 16 at s2 [*AEPA*].

⁴ *Dunmore v Ontario (AG)*, 2001 SCC 94 [*Dunmore*].

⁵ *Ontario (AG) v Fraser*, 2011 SCC 20 [*Fraser 2011*].

⁶ *Saskatchewan Federation of Labour v Saskatchewan*, 2015 SCC 4 [*SFL*].

laborers to assist in meeting the labor demands of Canadian farms.⁷ Since its inception in 1966, SAWP has expanded in scope to include Mexico as well as several other Caribbean nations.⁸ Canadian farmers unable to find local labor may contract with foreign workers from this array of countries for agricultural work. The TFW program differs slightly; TFWs come from countries not a part of SAWP and may find employment in sectors other than agriculture.

Together, SAWP and TFW employ a quarter of all agricultural workers according to Canadian statistics in 2021.⁹ Ontario employed 27,000 temporary foreign workers; this figure represents 43.2% of the total population of migrant workers in the agricultural sector in that year.¹⁰ The decades of history between Ontario farms and foreign workers stretches to present day as Canada continues to rely on migrant labor at Canadian farms. Consequently, the labor of migrant workers is directly responsible for the yearly growth and harvest of produce worth billions of dollars.¹¹ Despite these contributions, migrant laborers also represent some of the most vulnerable and exploited groups in Canada. The Covid-19 pandemic inadvertently shed light on the mistreatment of some of these workers as employers failed to meet provincial housing standards aimed at reducing the spread of the virus. Migrant agricultural laborers literally work in a field with no labor protections, in decrepit living conditions, and subject to the whims of their corporate employers.

⁷ Matthew McKarney, “In Defense of a Livelihood: Ontario Growers and the Seasonal Agricultural Workers Program Debate”, (Aug 2013), *Electronic Thesis and Dissertation Repository*, 1510 at page 1.

⁸ *Ibid* at page 8.

⁹ Statistics Canada, *Agriculture and agri-food labour statistics*, (June 2022), online: <https://www150.statcan.gc.ca/n1/daily-quotidien/220613/dq220613d-eng.htm> .

¹⁰ Statistics Canada, *Farm hands that help work the land*, (May 2023), online: <https://www.statcan.gc.ca/o1/en/plus/3634-farm-hands-help-work-land> (*Stats Can*).

¹¹ Mark Kelley et al, “Bitter Harvest”, CBC News, (November 29th 2020) online: <newsinteractives.cbc.ca/longform/bitter-harvest-migrant-workers-pandemic/>.

The Past Twenty Years of Labor Law

i) Dunmore and the Right to Associate

Migrant workers did not find themselves in this situation overnight, and there is a judicial history that precedes *Dunmore*. However, *Dunmore* directly engages with the specific exclusion of agricultural workers from the protection of labor law and emerged from a changing political landscape.

In June of 1994, the *Agricultural Labour Relations Act* was passed by the New Democratic Party in Ontario; the *Agricultural Labour Relations Act* conferred trade union and collective bargaining rights to agricultural workers.¹² Prior to this, agricultural workers were historically excluded from both union organization and legally bargaining with their employers (although this varies depending on provincial legislation).¹³ This exclusion was justified as agriculture is a seasonal industry, agricultural products are perishable and sensitive to both a changing climate and time of harvest. Once produce reaches peak freshness, it can only begin to deteriorate if not harvested and properly stored. This sentiment is also echoed in the preamble of the AEPA which notes the “unique characteristics”¹⁴ of agriculture and horticulture.

Following the passage of the *Agricultural Labour Relations Act*, the New Democrats were subsequently defeated in the 1995 provincial election and replaced by the Progressive Conservative Party.¹⁵ This prompted an amendment by the new government which restored the status quo.¹⁶ Once again, agricultural laborers were excluded from the labor regime. This exclusion was the crux of the *Charter* challenge against the Ontario Attorney General in

¹² Bradley Walchuk, “Ontario’s Agricultural Workers and Collective Bargaining: a History of Struggle” (2009) 14 *Just Labour: A Canadian Journal of Work and Society* 151 [Walchuk].

¹³ *Ibid.*

¹⁴ AEPA, *supra* note 3 at s1(1).

¹⁵ Walchuk, *supra* note 12, at page 151.

¹⁶ *Ibid.*

Dunmore where both s.2(d) and s.15 *Charter* rights were contested. In delivering his judgement, Bastarache J. deemed the exclusion of agricultural workers through s.3 of the *LRA* unconstitutional for unjustifiably infringing upon the *Charter* 2(d) right of freedom of association. Without the protection of the *LRA*, agricultural workers were “substantially incapable of exercising the freedom to associate”.¹⁷ The court explicitly recognized that the failure to safeguard “trade union freedoms ... strengthened the case for positive protection”.¹⁸ Consequently, a remedy was ordered, imposing a positive obligation on the Ontario government to protect and guarantee the s.2(d) *Charter* rights of agricultural laborers. Given the courts recognition of the s.2(d) violation, a s.15 analysis was not pursued.

Importantly, the Supreme Court of Canada reaffirmed the appellant workers’ “ability to form an independent association and to carry on its protected activities” under s.2(d) of the *Charter*. The freedom to associate “exist[ed] independently of any statutory regime”.¹⁹ The purpose of the *Charter* right of freedom to associate was to “promote the realization of individual potential through relations with others” and set itself apart from other *Charter* rights as a collective rather than individual *Charter* right.²⁰ However, the Supreme Court was careful in excluding the “right to collective bargaining” framing the issue in *Dunmore* as “the right to associate, [but] not the right to collective bargaining”.²¹ The Progressive Conservative Party of Ontario, who were in power at the time, subsequently drafted and passed the AEPA as the remedy for the *Labour Relations Acts* unconstitutionality.²² The *AEPA* was thus born out of the

¹⁷ *Dunmore supra* note 4, at para 38.

¹⁸ *Ibid* at para 37.

¹⁹ *Ibid* at para 24.

²⁰ *Dunmore supra* 4 at para 30.

²¹ *Ibid* at para 42.

²² *Walchuk supra* at 12 p. 152.

courts recognition of s.2(d) of the *Charter* strictly encompassing the right of agricultural workers to associate, but against the political backdrop of a decidedly ‘labour unfriendly’²³ provincial legislature.

ii) The AEPA and Agricultural Workers

The *AEPA* first and foremostly excludes agricultural employees from the *LRA* instead providing agricultural employees with “the right to form or join an employees’ association” and to “make representations to their employers, through an employees’ association”.²⁴ However, the *AEPA* does not outline a process for employers to address employee concerns when representations are made, only that employers allow employees’ associations a “reasonable opportunity to make representations”²⁵. Similarly, s.9 of the *AEPA* forbids employers from retaliating, discriminating against, or threatening employees who are members of employee associations. However, the *AEPA* fails to provide a statutory remedy if this section is contravened by the employer. The recourse which agricultural employees are allowed under the *AEPA* is to file a complaint with the *Agricultural, Food and Rural Affairs Appeal Tribunal* (the *Tribunal*).

In comparison, the *LRA*, as well as the short-lived *Agricultural Labor Protections Act* provided enforceable remedies if employees faced discriminated by their employers.²⁶ Paul Cavalluzzo criticizes the featurelessness of the *AEPA*’s ‘solution’ to addressing employee complaints on the basis that it would direct an issue of labor to a tribunal unequipped to address labor concerns.²⁷ Other than the *AEPA*, all other statutes which the *Tribunal* is responsible for

²³ Paul JJ Cavalluzzo, “*The Fraser Case: A Wrong Turn in a Fog of Judicial Deference*”, (2012) Constitutional Labour Rights in Canada, p155-189 at p 162 [Cavalluzzo].

²⁴ *AEPA supra* at s.1(2).

²⁵ *Ibid.*

²⁶ *LRA supra* X at s.96(4).

²⁷ Cavalluzzo *supra* 23 at p162.

overseeing are concerned with matters such as crop insurance and livestock, rather than labor.²⁸ The right to associate with no further guidance or substantive employee protections crystallized Justice L'Heureux Dube's predictions in her concurring judgement in *Dunmore* where she wrote that "the freedom to associate becomes meaningless in the absence of a duty of the state to take positive steps".²⁹ This narrow interpretation of *Dunmore* which the Conservative Government took in drafting the *AEPA* subsequently grants agricultural workers a "hollow right"³⁰ as association alone is not enough to protect them from exploitation.

iii) *Fraser 2011, and B.C. Health Services: The Ambit of 2(d) Rights*

Dunmore served to further clarify s.2(d) *Charter* rights, and expanded the freedom of association, which until *Dunmore* only protected "what individuals could do lawfully, such that collective bargaining and strikes were outside the scope of constitutional protection".³¹ Later, in *Health Services and Support – Facilities Subsector Bargaining Assn. v British Columbia* (2007), the freedom of association under s.2(d) was expanded once more. Section 2(d) rights now encompassed the right to bargain collectively and to be received by the employer in good faith.³² The right to bargain collectively with employers gave employees an opportunity to "influence the establishment of workplace rules and gain some control over a major aspect of their lives, namely their work".³³

²⁸ Agriculture, Food and Rural Affairs Appeal Tribunal, *What is the Tribunal?*, (June 2016), online: <https://afraat.ca/about/what-is-the-appeal-tribunal/>.

²⁹ *Dunmore supra* 4 at para 146.

³⁰ *Ibid* at para 154.

³¹ Judy Fudge, "Farmer Workers, Collective Bargaining Rights, and the Meaning of Constitutional Protection", (2012) *Constitutional Labour Rights in Canada*, p1-28 at p4.

³² *Health Services and Support – Facilities Subsector Bargaining Assn v British Columbia*, 2007 SCC 27, at para 82 [BC Health Services]

³³ *Ibid* at para 82.

Fraser was decided four years after *B.C. Health Services* and required the Supreme Court to once again assess the constitutionality of the *AEPA* based on the same *Charter* claims that were brought up in *Dunmore*. *Dunmore* and *B.C. Health Services* understood together indicated that s.2(d) *Charter* rights encompassed both 1) the right to associate and 2) the ability to collectively bargain and be received in good faith. On its face, the *AEPA* was narrowly compliant with *Dunmore*, as it was the legislative remedy ordered by the court. The Court of Appeal's decision for *Fraser* found the *AEPA* unconstitutional for 'substantially impairing'³⁴ the ability of agricultural workers to bargain collectively – a right that was now encapsulated by s.2(d). The main question the Supreme Court grappled with this time, was whether the *AEPA* – which could not predict the continued development of s.2(d) *Charter* rights – was constitutional following *B.C. Health Services* and contemplated the right for agricultural employees to collectively bargain and be heard in good faith.

Unexpectedly, the Supreme Court spent much of the judgement on reiterating the legislative history of labor, as well as responding to Rothstein J.'s criticism of *B.C. Health Services*. The Supreme Court found that the Court of Appeal had erred, stating that: 1) s.2(d) did not guarantee a specific model of collective bargaining or a particular outcome³⁵ and 2) s.2(d) rights protects only the right to associate to achieve collective goals.³⁶ The court stated that the *AEPA* allowed workers to associate through employees' associations and gave them a "reasonable opportunity to make representations to their employers".³⁷ Subsequently, barring a legislative scheme that made association in pursuit of workplace goals *impossible*, there would

³⁴ *Fraser* 2011 *supra* at 3 para 15.

³⁵ *Ibid* at para 33.

³⁶ *Ibid*.

³⁷ *AEPA supra* at s.5(1).

be no infringement of s.2(d).³⁸ Likewise, the equality rights of agricultural employees were not based on immutable or constructively immutable personal characteristics, and were not protected under s.15 of the *Charter*.³⁹ The *AEPA* was constitutional, and migrant workers in Ontario continued to have access to only a nebulous labor statute that offered no tangible protections.

Apprehending Vulnerability, Comparing *Dunmore* and *Fraser*

Fraser sparked extensive discussion. Supreme Court Justices Deschamps and Rothstein were both deeply concerned regarding the expansion of s.2(d) *Charter* rights after *B.C. Health Services*. However, the focus on the expansion of s.2(d) obfuscates the substantial and real impact of *Fraser* on migrant laborers. In *Dunmore*, the court recognized two features of “vulnerability” in the agriculture industry. There was an explicit acknowledgement of the changing landscape of agribusiness in the early 2000’s which is recorded in part of the s.1 analysis. The court in *Dunmore* also recognized that agriculture was an economically vulnerable industry which could be adversely impacted by unpredictable weather, customer demand, and regulation. Additionally, due to high input costs, margins of profit were also narrow.⁴⁰

i) Economic and Financial Vulnerability

The first vulnerability in agriculture is economic and financial in nature and the meat processing industries in British Columbia and Ontario are case studies on the tension between food policy and small farming communities. In the early 2000’s stringent, provincial meat regulations were introduced, focusing on establishing safety benchmarks; these regulations were

³⁸ *Fraser* 2011 *supra* at 3 para 42.

³⁹ *Ibid* para 131.

⁴⁰ Christiana Miewald, Sally Hodgson & Aleck Ostry (2015) *Tracing the unintended consequences of food safety regulations for community food security and sustainability: small-scale meat processing in British Columbia*, *Local Environment*, 20:2, 237-255 [Miewald]

the product of outbreaks of bovine spongiform encephalopathy.⁴¹ However, these regulations also had the unintentional consequence of permanently pushing some farmers out of the market. This effect rippled outwards and led to the permanent closures of small, local abattoirs.⁴² These smallholder farmers were often local community members who cared deeply for the safety of their customers, as they were neighbors and fellow residents of their townships.⁴³ However, small-scale farmers struggled to bear the costs associated with inspection regimes without running financial losses. Despite playing a crucial role in feeding and supplying food to their smaller communities, small-scale meat producers and processors were unable to justify continuing operations without profit. The erasure of these local abattoirs and producers in turn reinforced and placed meat production into the hands of larger scale producers and corporations who had the capital required to comply with international safety standards.⁴⁴ This pattern of corporate capture in agriculture was also recognized in *Dunmore* and the Supreme Court mentions the gradual departure from the family farm model towards the corporatization of our food supply.⁴⁵ Unsurprisingly, the largest farms contribute the most to total agricultural revenue in Canada, and farms which are owned by non-family corporations form the most profitable farm operating arrangements.⁴⁶ This corresponds with the dominant agribusiness model of food production as well as the marked departure from the urban stereotype of the humble family farm.⁴⁷

⁴¹ *Ibid* at p. 237.

⁴² *Ibid*.

⁴³ *Ibid* at p 249.

⁴⁴ Martha McMahon, "Standard fare or fairer standards: Feminist reflections on agri-food governance", (Nov 2009), 28, *Agric Hum Values*, 401-412 at p 406.

⁴⁵ *Dunmore supra* 3 at para 52.

⁴⁶ Zong Jia Chen and Justin Clark "Canada's farms were more profitable in 2020 than in 2015" Statistics Canada, March 16th 2023 ,Catalogue no 96-325-X at page 3.

⁴⁷ *Ibid*.

ii) Vulnerable Workers

The second ‘vulnerability’ that the court recognized was the vulnerability of agricultural workers themselves. Compared to other occupations excluded by the *LRA*, the court accepted in *Dunmore* that agricultural workers had low levels of skill, education, status, and limited employment mobility.⁴⁸ Justice L’Heureux Dube specifically draws attention to this in her concurring opinion in *Dunmore*, where she engages in a s.15 equality rights analysis. Looking retroactively, L’Heureux Dube J.’s analysis faces some problems as s.15 rights are cemented on enumerated grounds or analogous grounds that are immutable traits like race or sexuality. However, Deschamps J.’s analysis in *Fraser* does also suggest a possibility that an occupation distinction may unjustifiably limit s.15.⁴⁹ L’Heureux Dube J. also notes the status of agricultural workers as “among the most economically exploited and politically neutralized individuals in our society who face serious obstacles to effective participation in the political process”.⁵⁰

The courts overall concession that agricultural workers are a vulnerable group in *Dunmore* was meaningful as it removed the abstraction that insulates the law from the tangible effects on its subjects. It was a concrete recognition of the lived realities of those working on farms to grow, cultivate, and harvest the produce that feeds the people of Canada. However, L’Huereux Dube J.’s statement also carries an implicit assumption: that the vulnerable farm workers in question are individuals entitled to participating in Canada’s political processes yet are prevented from exercising this right meaningfully. The agricultural laborers which Justice L’Heureux Dube imagined in 2001 when *Dunmore* was decided, were Canadian people. Migrant workers have historically been a population that supplemented Canadian labor rather than being

⁴⁸ Fraser 2011 *supra* 5 at para 102.

⁴⁹ *Ibid* at para 114.

⁵⁰ Dunmore *supra* 4 at para 168.

the majority of the labor itself. However, over the past two decades, the hole of labor in the agricultural industry has been expanding.⁵¹ This has created a greater demand for people to work in agriculture and this unfilled labor gap has led to increased demand for temporary workers. Unsurprisingly, many Canadians are unwilling to work a job that has no basic labor protections, is dirty, demanding, and rife with danger.⁵² This demand is further exacerbated by the ever-increasing yields of corporatized, large-scale agricultural production that are assisted with technological innovation.⁵³ What Justice L’Heureux Dube pictured in 2001 stands in stark contrast with the landscape of agriculture now, which heavily relies on the labor of foreign migrant workers. In 2021, agriculture provided 97,800 jobs in Ontario (including non-labor agricultural jobs), of which 28,800 were filled by temporary foreign workers, the vast majority from countries in the global south like Mexico and Guatemala.⁵⁴

Comparatively, the silence in *Fraser*— other than from Abella J. — regarding agricultural workers whom the Supreme Court previously recognized in *Dunmore* is troubling for several reasons. Justice Abella points out the first issue in her dissent. As the *AEPA* was created before *B.C. Health Services*, Ontario’s government could not be held accountable for its noncompliance. However, because it includes ‘a complete absence’⁵⁵ of the right to either consultation or collective bargaining, it violates s.2(d) of the *Charter*. Despite the court calling the claim in *Fraser* ‘premature’, there were findings that no agreements between agricultural workers and

⁵¹ Postmedia News, *Labour Shortage will worsen*, (Feb 2024), online:

<https://www.ontariofarmer.com/business/farm-business/labour-shortage-will-worsen>.

⁵² Orrenius, P. M., & Zavodny, M. (2009). Do immigrants work in riskier jobs?. *Demography*, 46(3), 535–551.

<https://doi.org/10.1353/dem.0.0064>.

⁵³ The Conference Board of Canada “Sowing the Seeds of Growth – Temporary Foreign Workers in Agriculture” 2016

⁵⁴ Canadian agricultural partnership “Ontario agriculture and food processing skills and occupation gaps” September 2021

⁵⁵ *Fraser* 2011 *supra* 5 at para 368/

their employers had been successfully negotiated through the *AEPA* since its introduction after *Dunmore* in 2002.⁵⁶ This statement by the Supreme Court is also willfully ignorant of Canada's historical exclusion agricultural laborers from labor protections. The historical reasons used to justify the "exclusivity" of agricultural workers from labor protections was now being used by agribusiness to fuel a highly exploitative industry. The *AEPA* offering no substantial labor protections simply served to extend this history into new, and more draconic conditions.

The decision in *Fraser* leaves agricultural workers at the whims of their employers. In a world where the small family farm was still the prevailing model of agriculture, extreme exploitation may have been mitigated by more personal, mutual relationships with employers.⁵⁷ However, the shift to corporate models of agribusiness – characterized by complex supply chains, large-scale planting and harvesting, and a focus on maximizing profits – creates incentives to minimize support for the workforce at the base level.⁵⁸ The vulnerabilities born conjoined to the historical exclusion of agricultural laborers from basic labor protections has been compounded by an intersection of comorbidities. These labor conditions have been described by a UN special rapporteur as "modern day slavery".⁵⁹ Many migrant agricultural workers lack specific job skills, lack ability in English or French, lack education and consequently have low job mobility. This confines migrant agricultural workers to working in a backbreaking industry with no access to labor rights to safeguard their interests. At Rol-Land Farms, where the respondents in *Fraser*

⁵⁶ Michael J. Fraser et al., "Respondents Michael J Fraser et al", (2011) at para 13, online (pdf): *Supreme Court of Canada* < https://www.scc-csc.ca/WebDocuments-DocumentsWeb/32968/FM030_Respondents_Michael-J-Fraser-et-al.pdf > [Fraser Factum]

⁵⁷ Blair Sanderson, "Nova Scotia farmer gets to know temporary foreign workers in their homeland" March 22nd 2016, CBC News.

⁵⁸ Natalie Childs, "The Fruits of Unpaid Labour", (2015), online: *Guts Magazine* <<https://gutsmagazine.ca/the-fruits-of-unpaid-labour/>>

⁵⁹ Al Jazeera Staff, "Migrant Workers in Canada 'vulnerable' to modern-day slavery: UN expert", (2023), online: *Al Jazeera* < <https://www.aljazeera.com/news/2023/9/6/migrant-workers-in-canada-vulnerable-to-modern-day-slavery-un-expert> >.

were employed, 80% of workers were immigrants from countries that spoke little to no English or French.⁶⁰ Difficulty is magnified and exacerbated by placing migrant workers – who themselves are attempting to carve a life out of poverty – in a work environment that the law and the Canadian judiciary says is not deserving of basic labor protections.

An Aside into Employment; What this Labour Environment means for Migrant Workers in Agriculture

The decision in *Fraser* perpetuates conditions that deny labor protections to the entirety of the agricultural workforce in Ontario. However, language literacy in English and French is a highly underestimated impediment which disproportionately affects agricultural migrant workers. On the flip side of labor, are the private contractual relationship between migrant workers and their employers. The individual contracts between agricultural employees and their employers have standards governed under Ontario's *Employment Standards Act*⁶¹ which lie in the realm of employment rather than labor law. The *Employment Protections for Foreign Nationals Act* (2009) also specifies illegal acts that allow employees to file complaints to the *Ministry of Labour* in either “written or electronic form” rather than the *Tribunal* under the *AEPA*.⁶² However, agricultural employees on single farms are also not entitled to several basic employee entitlements including and not exhaustively: 1) minimum wage; 2) eating periods; 3) daily and weekly limits on hours of work; 4) overtime pay; 5) time off between shifts; 6) daily rest periods.⁶³ This type of agricultural “exceptionalism”⁶⁴ in employment is not specific to migrant

⁶⁰ *Fraser* factum *supra* 56 para 23.

⁶¹ *Employment Standards Act*, 2000, c 41 [ESA].

⁶² *Employment Protections for Foreign Nationals Act*, 2009, c 32 at s.20(1).

⁶³ Ontario, *Agriculture, growing, breeding, keeping and fishing*, (May 2022), online: Ontario.ca <<https://www.ontario.ca/document/industries-and-jobs-exemptions-or-special-rules/agriculture-growing-breeding-keeping-and-fishing#section-0>>.

workers, it affects all employees in the agricultural sector. Some of the rationales behind these exclusions involve the continuous nature of the work. Livestock animals need to be fed even on holidays, and perishable fruits and vegetables need to be harvested and placed into cold storage as soon as possible to ensure freshness. The absence of basic contractual minimums for Ontario's migrant workers, coupled with their limited labor protections under the AEPA, heightens their vulnerability to exploitation.

It takes no stretch of imagination to picture how these rules taken together may create an oppressive employment environment for agricultural workers. For the unimaginative, the documentary *Migrant Dreams* (2016) illustrates the plight of migrant workers through Nanik, an Indonesian temporary foreign worker in Leamington, Ontario.⁶⁵ With limited English ability, Nanik is unable to read the terms of the contract provided to her by her employer. Dissatisfied with the housing provided by her employer – a house where sixteen other migrant workers live – Nanik finds an alternate housing arrangement. However, to her dismay her employer continues to deduct rent from her paycheck. There is no requirement under the *ESA* for her employer to provide her or other migrant workers with translated documents. She works long hours, with little rest in between, and calls her loved ones back home when she has time off work.

Nanik and countless other migrant workers are disincentivized from speaking out as they understand that termination rapidly leads to expatriation to their home countries. Without paying off the debt Nanik took on to make the journey to Canada, being sent home would spell economic disaster for Nanik and her family. Fear and uncertainty are leveraged by Canadian

⁶⁴ Eric Tucker, "Farm Worker Exceptionalism: Past, Present, and the post-Fraser Future", (2012), Constitutional Labour Rights in Canada: Farm Workers and the Fraser Case, p30 [Farm Worker Exceptionalism].

⁶⁵ Min Sook Lee, "Migrant Dreams", (2016), online (documentary): youtube.com < https://www.youtube.com/watch?v=vRBhZ_YBfJM > [Migrant Dreams].

employers who are aware that the right for migrant workers to remain in Canada is indentured. With no way to unite the multilingual, discordant voices of migrant workers under labor law, the exceptional nature of agricultural employment becomes a breeding ground for abuse.

Migrant Dreams contemplates Nanik's issues of employment specific to her status as a migrant worker and consolidates one of the key weaknesses of being "protected" by employment statutes that place the onus of complaint onto the person being exploited.⁶⁶ This barrier also does not affect all migrant workers equally, as those with English ability, and those working in more technical occupations will also more easily access legal remedies.⁶⁷ Migrant workers find themselves exploited holistically, such as in *O.P.T. v Presteve Foods Ltd.* where a migrant worker from Mexico filed a claim against her employer with the Human Rights Tribunal for sexual assault.⁶⁸ The complainant's employer would regularly threaten her with deportation, and she would comply to his advances, as she needed the income to support her family in Mexico.

In *Logan v Ontario*, after a violent sexual assault implicated a black man in the area, over ninety black agricultural migrant workers were racially profiled and had their DNA canvassed. The complainant Logan was a Jamaican seasonal migrant worker who had refused to take part in the swabbing and provided an alibi but eventually relented at his employer's insistence.⁶⁹ Despite his compliance, Logan was not re-hired to return to the farm which he had worked at consistently for several years. The OPP cast a "wide net" swabbing migrant workers even if they "did not reasonably match the height range, age range, build, and lack of facial hair

⁶⁶ Leah F. Vosko, Eric Tucker, and Rebecca Casey, "Enforcing Employment Standards for Migrant Agricultural Workers in Ontario, Canada: Exposing Unexplored Layers of Vulnerability", (2019), 35:2, *International Journal of Comparative Labour Law and Industrial Relations*, p227 at 229.

⁶⁷ *Ibid* at p 234.

⁶⁸ *OPT v Presteve Foods Ltd*, [2015] OHRTD No 682 [Presteve Foods].

⁶⁹ *Logan v Ontario (Ministry of the Solicitor General)*, [2022] OHRTD No 997112 at para 112 [Logan].

described by the victim”.⁷⁰ The sentiment repeated *ad nauseum* by all migrant workers was an intense fear of employer retaliation and subsequent repatriation. When there is a consistent, and recognizable pattern of employee sentiment that exploits migrant workers’ precarious legal status in the province, their widespread mistreatment is no longer coincidental but a deliberate endorsement.

Saskatchewan Federation of Labor and MedReleaf

This circles back to a significant, newer labor decision in *Saskatchewan Federation of Labor v Saskatchewan* (2015).⁷¹ This case concerned an agreement – *Public Service Essential Services Act* – that allowed Saskatchewan’s provincial government to unilaterally declare public employees “essential” and subsequently take away their ability to strike. The case was significant as it further built on the decision in *B.C. Health Services*. Although *Fraser* reduced the ambit of s.2(d) as to not promise any particular model of collective bargaining. *SFL* “tethers the right to strike to the process of collective bargaining”.⁷² This is unambiguously a step forward for s.2(d) *Charter* rights towards an approach that “promotes equality in the bargaining process”.⁷³ However, there is still one group that has been left behind, unable to meaningfully bargain – and with the decision in *SFL* – and clearly unable to strike despite striking being the “powerhouse of collective bargaining”.⁷⁴

⁷⁰ *Ibid* at para 112.

⁷¹ *Saskatchewan Federation of Labour v Saskatchewan*, 2015 CLLC [SFL].

⁷² Bethany Hastie and Alex Farrant, *What Meaning in a Right to Strike? MedReleaf and the Future of the Agricultural Employees Protection Act*, (2022) 53 Ottawa L Rev 1 - 34 , (2022) 53 RD Ottawa 1 – 34 at para 48 [Right to Strike]

⁷³ *SFL supra* 71 at para 55.

⁷⁴ *SFL supra* 71 at para 55.

*UFCW v Medreleaf Phase 2 (2020)*⁷⁵ was brought to the *Agriculture, Food and Rural Affairs Appeal Tribunal*. The United Food and Commercial Workers International Union (UFCW) brought a claim to the tribunal under the *AEPA*, asserting that s.2(1) and s.5 of the *AEPA* violated 2(d) *Charter* rights under the rule of *SFL*. This is effectively the same claim that was made in *Fraser*, stating that the *AEPA* violated s.2(d) of the *Charter* with an added inquiry on the right to strike. The *Tribunal* effectively uses a narrow reading of *SFL*, stating that constitutionality hinges on labor relations schemes which explicitly ban strikes without providing a statutory alternate dispute resolution process.⁷⁶ The *AEPA*'s silence does not constitute a ban on strikes, and as the *AEPA* allows aggrieved employees to file complaints with the *Tribunal* it remains constitutional under *SFL*. What is surprising about the *Tribunal* decision in *Medreleaf* is the defensiveness of the *Tribunal* who openly criticize the complainants:

It is this singular focus of the UFCW on the Wagner Act model of collective bargaining that is the UFCW's downfall, not the AEPA's. When UFCW states, again on its website, that "not one group of Ontario agricultural works has ever been able to organize or bargain collectively under the AEPA," such a statement is inherently true as the *AEPA* admittedly does not provide for traditional collective bargaining. However, it is the UFCW that itself has sabotaged any potential effectiveness of the processes provided by the AEPA. Just as it did with MedReleaf (see Phase One Decision), it has only tried to organize agricultural workers under the *LRA* and the *Canada Labour Code*, both of which utilize a Wagner Act collective bargaining model. The UFCW's witnesses could not identify any representational activity that the UFCW has undertaken under the *AEPA*, other than those following a Wagner Act collective bargaining model. Nor could they identify any time workers were advised of their actual rights under the *AEPA*, as opposed to being misled (such as by its website) about any such rights.⁷⁷

⁷⁵ *UFCW v MedReleaf Phase 2, 2020 ONAFRAAT 8 (CanLII)*, <<https://canlii.ca/t/j8cc6>> [MedReleaf].

⁷⁶ *Ibid* at para 59.

⁷⁷ MedReleaf *supra* 75 at para 112.

In addition to criticizing UFCW's insistence on this mode of labor relations, the *Tribunal* also dismisses the evidence of Eric Tucker for his partisan views.⁷⁸ The *Tribunal* also considered evidence from the Attorney General on agricultural labor in Ontario and Canada. This revealed the known issue of the widening labor gap caused by “increasing demands in the province for labor and the decreasing supply of labor in that same sector”, a factor that is understood to push towards increasing the number of migrant workers in Ontario.⁷⁹ The singular time that the *Tribunal* considers the employees seeking representation, is to acknowledge that there was no evidence that MedReleaf workers suffered from economic disadvantage. The workers at MedReleaf were “skilled, trained, received good wages, benefits, and worked in a highly regulated and inspected facility”.⁸⁰ Strangely enough, the workers at MedReleaf were “uncertain about their security of tenure due to some employee dismissals” despite not being employed through either SAWP or TFWP.⁸¹ The Tribunal's recognition that the *AEPA* failed to protect workers who were considered “relatively secure” shows the irremediable power imbalance between workers and management, even where workers are considered valuable assets.

Bethany Hastie and Alex Farrant in “*What Meaning in a Right to Strike? MedReleaf and the Future of the Agricultural Employees Protection Act*” have an optimistic reading of the tribunal's decision. They contend that “existing constitutional jurisprudence, coupled with the language of the *AEPA* itself ... work together to offer the very kind of protection needed to give

⁷⁸ *Ibid* at para 78.

⁷⁹ *Ibid* at para 90.

⁸⁰ *Ibid* at para 25.

⁸¹ *Ibid* at para 24.

meaningful effect to the right to strike against the *AEPA* ... specifically against employer reprisal in this context”.⁸²

This does not seem to be the case, as the *Tribunal* stated that “absent any *AEPA* prohibition on striking, MedReleaf’s employees had the freedom to withdraw their services to exert economic leverage on their employer in negotiations over employment terms (collective bargaining)”.⁸³ As Abella J. expressed in her dissent in *Fraser*, without either a statutory enforcement mechanism to resolve bargaining disputes or majoritarian exclusivity – employer only bargaining with a representative selected to represent the employees – this nullifies employees ability to be heard as a unified entity. If MedReleaf employees were to “strike” and withdraw their labor in an unorganized and disarrayed manner, this “would amount to no more than the freedom to suffer serious adverse legal, and economic consequences”.⁸⁴ The *Tribunal* states that it is the *UFCW*’s insistence on a Wagner model of collective bargaining that has sabotaged the *AEPA*’s efficacy, but it does not recognize that the history of farm worker exclusivity stretches beyond the timeline of *MedReleaf*. *Tribunal* decisions are not binding, but *MedReleaf* further reinforces the hollow rights conferred by the *AEPA*. *Fraser* is simply regurgitated in the *Tribunal*’s decision in *MedReleaf* in spite of new case law that is meant to move s.2(d) rights forward.

Conclusion

Acknowledging the longstanding history of the struggle of agricultural workers is necessary to the creation of a chain of agricultural production that is equitable and just. Section

⁸² Right to Strike *supra* 72 at para 33.

⁸³ MedReleaf *supra* 77 at para 96.

⁸⁴ Dunmore *supra* 4 at para 154.

2(d) *Rights* are supposedly in place “to protect individuals against more powerful entities, thus empowering vulnerable groups and helping them work to right imbalances in society”.⁸⁵

Nonetheless, as s.2(d) rights have holistically expanded, agricultural workers have continued to be left behind. Since *Dunmore*, the Supreme Court asserted that this right allows a collective to achieve what an individual cannot.⁸⁶ Yet little progress has been made for agricultural workers, whose numbers grow with Canada’s increasing appetite for labor.

Fraser is one of the cases most responsible for some of the egregious conduct that has been perpetrated by Canadian agricultural employers in Ontario. Despite significant case law developments in labor such as *Mounted Police Association of Ontario v Canada (AG)* and *Meredith v Canada*, agricultural workers are still without a statutory scheme that safeguards their interests. On a domestic level, this is unacceptable and shows that Canada fundamentally does not respect the work which migrant laborers do on farms and greenhouses. At the same time, without migrant workers, our food systems –and the economic revenue and sustenance they provide –would collapse. Internationally, how can Canada claim to be a leader in human rights and social progress if it disregards the rights of its most vulnerable workers? More critically, what obligations does Canada owe to workers who arrive burdened with debt, face precarious legal status, and whose numbers continue to expand?

There have been some steps made towards improving conditions for agricultural workers such as the federal *Agri-Food Pilot Program* which provides a pathway to permanent residence for experienced, non-seasonal workers in specific industries like meat production and greenhouse

⁸⁵ *Mounted Police Association of Ontario v. Canada*, [2015] 1 S.C.R. 3 at p54.

⁸⁶ *Supra* Dunmore, at note 4, paragraph 17.

operations.⁸⁷ Some workers under SAWP, may also change employers without getting repatriated by getting new work permits for a different employer. However, employers may be hesitant to hire workers who have expressed desires to switch employers. Currently, there is also a class action being brought on behalf of two former migrant agricultural workers. *Palmer and Peters v Attorney General of Canada*,⁸⁸ alleges that \$500 million of employment insurance premiums have been collected by Canada from migrant agricultural workers and their employers, while subsequently denying these workers the ability to access these benefits. These allege that s.7 and s.15 of the migrant workers' *Charter* rights have been contravened, the case pending certification.

Lastly, the denial of labor protections from agricultural workers also raises inquiry regarding food and food production. Canada has chosen to put the production of food into the hands of corporations, whose interests are diametrically opposed with those of their employees as well as their consumers. Consumers want food at low prices, whereas corporations require profit as an incentive to continue operations. Cutting input costs is one of the straightforward ways to improving margins of profit, but food production necessitates high input costs. Moreover, people need food to survive; it is not an optional commodity. Interest in profit is complicated by agricultural employer obligations to migrant workers, which results in the situations which *Migrant Dreams* depicts. This treatment of migrant workers also devalues agricultural work itself; the widening labor gap and inability for domestic employers to employ Canadians in the sector is indicative of this. Canadians do not want to do work that is rife with exploitation, is physically

⁸⁷ Government of Canada, *Agri-Food Pilot*, (2024) online (website) Government of Canada: <https://www.canada.ca/en/immigration-refugees-citizenship/services/immigrate-canada/agri-food-pilot.html>.

⁸⁸ Goldblatt Partners, "Palmer and Peters v Attorney General of Canada", (2024) online (website) Goldblatt Partners: <https://goldblattpartners.com/experience/class-action-cases/post/palmer-and-peters-v-attorney-general-of-canada/>.

demanding, poorly compensated, and demands long hours. Yet Canadian society expects those who enlist in TFWP and SAWP to willingly engage with this work.

The right to associate under s.2(d) has steadily expanded over the past two decades but has left those who are most need of its protections behind. Agricultural workers in Ontario under the *AEPA* are not given the opportunity to meaningfully exercise their s.2(d) rights. They can weakly associate, but unable to bargain or strike without risking employer retaliation. Those who Canada employs from overseas to work in Ontario through SAWP or the TFWP are perhaps the most affected by this, and their intersectional vulnerability is compounded by what should be seen as a gaping wound in labor relations. Canada needs to more critically reflect on the ongoing hardship which agricultural workers face in Ontario when excluded from substantial labor protections. Food is life's most basic need, and every animal on this planet depends on it. What might it mean to bring about better futures for the migrant workers who, season after season, return with dedication to gather the harvest that sustains Canada and far beyond?